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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**DECLARATION OF
FRANCISCUS DYLAN ROSARIO**

Hearing: September 8, 2026
Time: 9:00 a.m.
Dept.: 301

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; Code of Civil Procedure section 2015.5; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure section 425.16, subdivision (c), as

1 applicable to the fee motion opposed.

2 3. The Clerk's authority to accept this paper is under Government Code sections 68150 and
3 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and
4 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,
5 rules 2.118 and 2.119; this paper does not present any of those grounds.

6 4. The Court's authority to consider the substance is under Code of Civil Procedure section
7 425.16, subdivision (c), and California Rules of Court, rules 3.1110 and 3.1113.

8 5. This paper is filed August 14, 2026, which is early and still timely, measured from service of
9 the fee motion on August 11, 2026, under Code of Civil Procedure section 1005, subdivision
10 (b), and California Rules of Court, rule 3.1300. September 8, 2026, 9:00 a.m., Department
11 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670 notice, 10369671 O'Connell decla-
12 ration, 10369673 MPA; served August 11, 2026). Plaintiff opposes the motion and does not
13 concede a stipulated date.

14 Hearing: September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs
15 10369670 notice, 10369671 O'Connell declaration, 10369673 MPA; served August 11, 2026).
16 Plaintiff opposes the motion and does not concede a stipulated date. Hon. Christine Van Aken.
17 Case No. CGC-25-631801.

18 I, Franciscus Dylan Rosario, declare:

19 1. I am the Plaintiff in this action, Case No. CGC-25-631801. I am self-represented. I have
20 personal knowledge of the facts stated in this declaration, except where stated on information
21 and belief, and if called as a witness I could and would testify competently to them.

22 2. I make this declaration in support of my opposition to the Motion for Attorneys' Fees and
23 Costs under Code of Civil Procedure section 425.16(c) of Defendants CSAA Insurance Ex-
24 change; Carbone, Smith & Koyama; and Michael R. Chambers, served August 11, 2026,
25 and set for September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587;
26 DocIDs 10369670, 10369671, 10369673; served August 11, 2026).

SERVICE AND DEMAND

3. On August 11, 2026, I received by electronic transmission from Monique Schubert of Porter Scott a package captioned as a Motion for Attorneys' Fees and Costs and Memorandum of Costs in this Case No. CGC-25-631801. The email stated the papers would be filed that day.
4. The served Notice of Motion demands **\$37,110.46**, consisting of **\$35,973.00** in attorney fees and **\$1,137.46** in costs, under Code of Civil Procedure section 425.16(c), on behalf of CSAA Insurance Exchange; Carbone, Smith & Koyama; and Michael R. Chambers, set for September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670, 10369671, 10369673; served August 11, 2026).
5. The package included, as received by me: (a) Notice of Motion; (b) Memorandum of Points and Authorities; (c) [Proposed] Order; and (d) Declaration of Tyler J. O'Connell with exhibits A-D (orders and invoices). The O'Connell Declaration and fee MPA state that a Memorandum of Costs (Judicial Council MC-010) will be filed concurrently for the same **\$1,137.46** (\$1,064.95 filing and motion fees; \$72.51 service of process). On ROA Tx **80309587**, DocIDs **10369670** (notice), **10369671** (O'Connell declaration), and **10369673** (MPA) appear; the proposed fee order is not a separate DocID among sequences 201-203; MC-010 was served August 11, 2026 and is **not separately docketed** as an ROA DocID. Plaintiff cites those ROA DocIDs rather than attaching duplicate exhibit PDFs.

PROCEDURAL CHRONOLOGY (MECHANICAL)

6. On or about May 12, 2026, this Court granted Defendants' special motion to strike under section 425.16 as reflected in a minute order. On August 6, 2026, the Court entered a written order granting the special motion to strike (DocID 10361462, confirmed on the August 12, 2026 Register of Actions).
7. I have personal knowledge of the August 11, 2026 Register of Actions and Calendar for this case. There was no appearance. The Court adopted its tentative and denied my motion for reconsideration. The August 11, 2026 Department 301 **minute order and mini minutes** denying reconsideration are the register identification of that denial. As of the August 12,

2026 Register of Actions paste (generated 1:06 p.m.): **none on ROA** for a written-order DocID (**no clerk DocID, no View link, and no PDF** of a signed written order). The proposed written order was directed to the prevailing party and is **not yet posted**. Exhibit F cites the minutes only. Exhibit J remains hold-ready until a written order posts. Plaintiff does not invent a reconsideration-order DocID.

8. Through the August 12, 2026 Register of Actions and Calendar (generated 1:06 p.m.), I have not observed a separately entered **judgment of dismissal** row following the August 6, 2026 strike order.

RELATED CASE FEE DEMAND

9. In related Case No. CGC-25-631802, Defendant CSAA Insurance Exchange (through the same firm) has noticed a separate motion for attorney fees under section 425.16(c) seeking **\$32,928.27**, set for hearing on August 26, 2026. I oppose double recovery for overlapping work across the two cases.

NO STIPULATION TO SEPTEMBER 8 DATE

10. I did not stipulate with defense counsel to set Defendants' fee motion for September 8, 2026. September 8, 2026, 9:00 a.m., Department 301 (ROA-confirmed; Tx 80309587; DocIDs 10369670 notice, 10369671 O'Connell declaration, 10369673 MPA; served August 11, 2026). Plaintiff opposes the motion and does not concede a stipulated date. On information and belief based on defense emails of August 10 and August 11, 2026, counsel unilaterally reserved that date. I do not contend in this declaration that facial notice from August 11 to September 8 is insufficient under Code of Civil Procedure section 1005, subdivision (b); I note only that I did not agree the motion was unopposed as to date or merits.

LODESTAR / INVOICE OBSERVATIONS

11. I have reviewed the Declaration of Tyler J. O'Connell served with the fee motion. Paragraph 11 states counsel spent **169.30 hours** litigating this case "in its entirety" through July 10, 2026, at **\$210** per hour, anticipates **two** additional hours for the fee hearing, and claims **\$35,973.00**.

12. On the face of the Exhibit C invoice materials served with that declaration (as OCR'd from the August 11 electronic service), the billable total for Client ID 3064.0323 appears as **\$34,961.50** for **169.30** hours. That face total does not equal 169.30 x \$210 (\$35,553.00). I dispute that the claimed \$35,973.00 is a reliable lodestar until Defendants reconcile the invoice lines to the declaration.
13. The same Exhibit C materials, as OCR'd, contain multiple narrative references to work on a **CCP 436** motion to strike. On information and belief based on the register of actions, Defendants' CCP 436 motion in this case went off calendar on or about May 22, 2026. I dispute that hours spent on that motion are recoverable as mandatory fees under section 425.16(c) for the special motion to strike.
14. The same OCR materials include at least one narrative reference to Case No. **CGC-25-631802**. I dispute recovery in this case of hours attributable to the related case.

COSTS / MC-010

15. The fee motion seeks **\$1,137.46** in costs. O'Connell Declaration paragraph 14 states the office "will concurrently file a Memorandum of Costs, which will list the same cost amount sought here, totaling: \$1,137.46." MC-010 is claimed as a concurrent filing and is **not separately docketed** as an ROA DocID among 201-203. I object to double recovery.
16. The cost detail associated with the claimed concurrent MC-010 / fee-motion cost extract (as OCR'd from the August 11 service package) lists vendor charges that include, among other items: CMC statement e-filing, notices of withdrawal, CourtCall for an ex parte appearance, and multiple e-filing events. I dispute that every component is an allowable cost necessarily incurred on the special motion to strike, and I have filed a separate Motion to Tax or Strike Costs under California Rules of Court, rule 3.1700(b).

APPEAL / FEE CONTINGENCY

17. I filed a notice of appeal from the August 6, 2026 anti-SLAPP order and related rulings, including the August 11, 2026 reconsideration denial (minutes only until a written order posts), on August 14, 2026. Appellate number TBA. I do not recite a File & ServeXpress

1 transaction identifier in this declaration. I understand that a fee award under section 425.16(c)
2 is contingent on that order's survival on appeal. I ask this Court to deny fees or, if any award
3 enters, to recognize that contingency.

4 **COURTESY**

5 18. I will conduct further communications with defense counsel courteously and will address
6 substance, not personalities. The facts in this declaration support the fee, stay, and sequencing
7 posture for the August 11, 2026 section 425.16(c) fee package.

8 I declare under penalty of perjury under the laws of the State of California that the foregoing is
9 true and correct.

10 Executed on August 14, 2026 at Rohnert Park, California.

11 _____
12 Franciscus Dylan Rosario
13 _____

14 **PLAINTIFF'S EXHIBIT INDEX (STUB)**

15 **IN SUPPORT OF OPPOSITION TO FEE MOTION (CGC-25-631801)**

16 **Exhibit A.** Defendants' Notice of Motion for Attorneys' Fees and Costs (served Aug 11, 2026;
17 ROA DocID **10369670**, Tx **80309587**). Status: Cited by ROA DocID; duplicate PDF not attached.

18 **Exhibit B.** Defendants' MPA ISO Fee Motion (served Aug 11, 2026; ROA DocID **10369673**, Tx
19 **80309587**). Status: Cited by ROA DocID; duplicate PDF not attached.

20 **Exhibit C.** Declaration of Tyler J. O'Connell ISO Fee Motion (ROA DocID **10369671**, Tx **80309587**),
21 including Exhibit C invoice extract and Exhibit D cost extract as served (orders/invoices; not Judi-
22 cial Council MC-010). Status: Cited by ROA DocID; duplicate PDF not attached.

23 **Exhibit D.** Defendants' [Proposed] Order re Fees and Costs (served Aug 11, 2026; not a separate
24 ROA DocID among 201-203). Status: Served paper; not a separate ROA DocID.

25 **Exhibit E.** Claimed concurrent MC-010 Memorandum of Costs (Summary) / cost detail for \$1,137.46
26 (concurrent filing claimed in decl/MPA; served August 11, 2026; **not separately docketed** as ROA
27 DocID; do not invent DocID). Status: Recited as served August 11, 2026; no invented DocID.

1 **Exhibit F.** August 11, 2026 Department 301 calendar mini minutes / ROA L&M text denying re-
2 consideration, labeled minutes (**none on ROA** for written-order DocID / no PDF; proposed written
3 order not yet posted). Status: Minutes excerpt; not a signed order.

4 **Exhibit G.** Register of Actions excerpt showing August 6, 2026 strike order (DocID 10361462),
5 fee package Tx **80309587** / DocIDs **10369670/10369671/10369673**, and absence of a judgment-
6 of-dismissal row / separate MC-010 DocID. Status: Cite live ROA / docket paste.

7 **Exhibit H.** Proof of electronic service / cover email from Monique Schubert dated August 11,
8 2026. Status: Service cover identified; not a fee-motion DocID.

9 **Exhibit I.** Cross-case: Notice or cover page of CGC-25-631802 fee motion (\$32,928.27) for du-
10 plication showing. Status: Cross-case notice identified for duplication; not attached as a substitute
11 801 exhibit.

12 **Exhibit J.** August 11, 2026 reconsideration denial: proposed / signed written order when posted
13 (DocID / View TBA). Status: **Hold-ready**. Attach when ROA shows View / DocID. Plaintiff does
14 not invent a recon-order DocID.

15 **Bookmark note (CRC 3.1110(f)(4)):** When exhibits are combined into a single PDF volume for
16 e-filing, each exhibit must be bookmarked with the exhibit letter and short title above.

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